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| 7.                      | 25CV3271 | WELLS FARGO BANK v. WALLWEBER |
| Motion to Deem Admitted |          |                               |

On or about January 13, 2026, Plaintiff served their first set of discovery, namely, Request for Admissions - Set One (collectively, "Discovery") on Defendant. A true and correct copy of the Request for Admissions is attached as Exhibit "1", to the Declaration of Edgar B. Lopez, Esq.

The Defendant's responses were due on or before February 17, 2026, however none were received. On or about February 17, 2026, Plaintiff sent a meet and confer letter to the Defendant advising that the responses were past due; the letter further provided an extension in which to respond. However, to date, no responses have been received, which necessitated this motion. Attached to the Declaration of Edgar B. Lopez, Esq. as Exhibit "2" and incorporated herein by reference, is the meet and confer letter sent to the Defendant.

Any party may obtain discovery by written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. See Cal. Code Civ. Proc. §2033.010. In addition, "[w]ithin 30 days after service of requests for admissions, the party to whom the requests are directed shall serve the original of the response to them on the requesting party ... " See Cal. Code Civ. Proc. §2033.250. Further, a responding party's untimely response to the request for admissions waives any objection to the requests, including one based on privilege or work product. See Cal. Code Civ. Proc. § 2033.280. Moreover, the requesting party may move for and the court may grant an order that the genuineness of any documents and the truth of any matters specified in the requests for admission be deemed admitted. See Cal. Code Civ. Proc. § 2033.420 (a).

There is no opposition by Defendant.

**TENTATIVE RULING #7: PLAINTIFF'S MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSIONS AS ADMITTED IS GRANTED.**

**NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).**

**NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.**

April 24, 2026  
Dept. 9  
Tentative Rulings

**LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.**